DR. SYLVIA AMA ADUSU

CANDIDATE OF THE REPUBLIC OF GHANA FOR ELECTION AS ITLOS JUDGE,

FOR THE TERM 2026 - 2035

ENDORSED BY THE AFRICAN UNION

Statement

I am greatly honoured to be Ghana's candidate for election to the International Tribunal on the Law of the Sea (ITLOS), a pivotal independent judicial body established by the United Nations Convention on the Law of the Sea (UNCLOS). Over the years, the tribunal has played a crucial role in bringing about peaceful dispute resolution, which has contributed greatly to international peace and security. I have a strong belief in the importance of UNCLOS as the legal framework for the oceans and its contribution to the peaceful settlement of international disputes related to the oceans.

I have been privileged to participate personally in the two cases involving Ghana, brought before ITLOS namely the "Ara Libertad" between Argentina and Ghana and the Ghana - Cote d'Ivoire case on their maritime boundary delimitation dispute. I have conducted extensive research into issues of the law of the sea. These experiences have awakened my aspiration to play a part in the work of ITLOS, in its pursuit of the peaceful settlement of disputes and assisting states to cooperate in the delimitation, sustainable exploitation of the resources of the oceans, and in the protection and conservation of the marine environment. I believe the tribunal has enormous potential to make even greater contributions to the sustainable use and protection of the marine resources and ecosystems and to ensure equitable access to ocean resources and fair application of the UNCLOS to all nations.

I hope to bring my outlook and positive energy to the Tribunal if elected and to work independently and impartially to deliver justice as well as promote the role of ITLOS in resolving maritime boundary and other related disputes in a fair and efficient manner, upholding the highest standards of justice and integrity.

Profile

Dr. Sylvia Ama Adusu is a Chief State Attorney in Ghana with over thirty years at the Bar. Prior to her doctoral research in the Law of the sea, she gained extensive experience and practice in international law as well as civil litigation, criminal prosecution and arbitrations. An outline of her curriculum vitae is presented:

PhD in Law, University of Lancaster, United Kingdom.
Area of Research - International Law (Law of the Sea) - (Oct 2015 – May 2020)

MPhil International Relations, Legon Centre for International Affairs, University of Ghana.
Area of Research – International law - (May 2003 – June 2005)

Postgraduate Diploma International Law and Sustainable Development,
Institute of Social Studies, The Hague, Netherlands - (Jan - March 2002)

Qualifying Certificate in Law, Ghana School of Law, Accra, Ghana- (1991 – 1993)

B.A.(Hons) Law and Sociology, University of Ghana, Legon, Ghana- (1988 – 1991)

Office of the Attorney-General and Ministry of Justice - (1996-present)

Current Position – Director, International Division.

Handling matters involving Ghana's international relations in collaboration with the Ministry of Foreign Affairs and Regional Integration; Coordinating the National Mechanism for Reporting and Follow-Ups to prepare Ghana's human rights reports to the UN Human Rights Council, the African Commission on Human and Peoples Rights as well as other treaty bodies; attending sessions of the Human Rights Council in Geneva, Switzerland and attending States Parties meetings for the UN Convention on the Law of the Sea.

Conducting cases involving the Republic of Ghana in foreign Courts in collaboration with foreign Counsel, Handling some international arbitrations, cases before the ECOWAS Court of Justice, the African Court and the African Committee on the Welfare of the Child of the African Union as well as participating in joint - co-operation meetings between Ghana and other African states,

Beyond the roles at the office of the Attorney General and Ministry of Justice, she also serves actively on some national multisectorial commitees incuding:

- Member, Ghana Boundary Commission - A commission that negotiates the delimination of Ghana's Maritime Boundaries with her neighbours.
- Co-Chair, Steering Committee on Business and Human Rights to develop a National Action Plan for Business and Human Rights in Ghana.
- Coordinator, Ghana's National Mechanism for Reporting and Follow-ups (NMRF).
- Member, National Assets Management Working Committee.

Relevant Professional Development and Training

- Yeosu Academy of the Law of the Sea, 2021.
- Meeting of the International Criminal Court on Witness Protection held in Accra-2014.
- Gulf of Guinea Maritime Security Workshop Accra 8-12 April 2013.
- 'Mastering the Techniques and Modern Trends in Negotiating and drafting Commercial Agreements' - Centre for Commercial Law and Financial Regulation University of Reading UK, 24 August 2012.
- 'Maritime Boundary Delimitation', Center for International Law, National University of Singapore. September 26-28, 2012.
- Ghana Security Sector Governance and management Course, organised by the Ghana Armed Forces at the Kofi Annan International Peace Keeping Training Centre, Accra. 5 August -26 August 2008.
- Project Design & Management Workshop. 13-14 September 2005 in Accra.
- 'Mediation and Conflict Transformation' United Nations Development Programme Project on Developing Capacity for Conflict Prevention Management and Resolution in Ghana. October 2005, Swedru – Ghana.
- Ghana Arbitration Centre Workshop on Techniques of Arbitration. 26 November 2004.
- Centre for African Peace and Conflict Resolution, California State University, Sacramento in collaboration with Ghana Association of Chartered Mediators and Arbitrators -Basic Alternative Dispute Resolution (ADR) Training Workshop January 7-10, 2003 in Accra.
- Advanced Securities, Ghana Stock Exchange Securities Course. Nov 1998.

At the International Court of Justice (ICJ)

• Represented the Republic of Ghana before the International Court of Justice (ICJ) in the matter of The Request for Advisory Opinion on the Obligation of States on Climate Change – December 2024
• Member, Commonwealth Military Justice Working Group. 2024- present.
• Chair, Specialised Committee on the Revision of the Treaty Establishing the Gulf of Guinea Commission, and its Fundamental Texts. 2023 – present.
• Focal Point of Ghana - United Nations Convention on Transnational Organized Crime (UNTOC) Review Mechanism. July 2023 – present.
• Chair, Expert Working Group on The Enforcement of Suppression Orders in the Commonwealth. (Commonwealth Secretariat) – 2022 - present.
• Beijing Everyway v GOG (Government of Ghana) - Arbitration before the Permanent Court of International Arbitration and the London Court of International Arbitration – 2021 – present.
• Co-Counsel, Ghana - Cote d'Ivoire Maritime Boundary Dispute (ITLOS case No 23) 2014-2017
• Member, Ghana - Cote d'Ivoire Maritime Boundary Dispute Negotiating Team- July 2008- May 2014.
• TJGEM vs Republic of Ghana, Accra Metropolitan Assembly, & others (forum: the United States District Court of Appeals for the District of Columbia, done in conjunction with Counsel in the USA). – 2013
• Member of team in the "ARA Libertad" (Argentina v. Ghana), Provisional Measures (ITLOS case No. 20) before the International Tribunal on the Law of the Sea in Hamburg, Germany. -2012.
• CP Construction vs The Government of Ghana and others (done in conjunction with counsel in the UK) – 2012.
• Member of the Continental Shelf Delineation Project that successfully submitted a claim for the extension of Ghana's continental shelf beyond 200NM. 2004-2009.
• Attending AU meetings of Ministers of Justice / Attorney General on legal matters in Addis Ababa, Ethiopia. Organized by the African Union.
• Participant, The 39th session of the International Law Commission held at the Palais des Nation, Geneva Switzerland from 7th to 25th July 2003.

Member of Ghana team at ITLOS (on the left)

Part Time Lecturer

University of Ghana School of Law - Part time Lecturer – LLM Programme, 2022 -Present
Lancaster University, UK - LLM International Law (Distance Learning) Oct.– Dec. 2017
Ghana School of Law, Accra - Part time Lecturer in Civil Procedure - 2012 - 2015

Unpublished Research

- Cooperation over Gulf of Guinea Resources (Phd Thesis)
- Sovereign Immunity: Charles Taylor's Indictment and Implications for International Relations (MPhil Thesis)

Conference Papers

Delivered at the Summer Academy on the Continental Shelf in Arusha Tanzania. Organised by the University of Faroe Islands in collaboration with the African Institute of International Law. April 21-27, 2024

- 'Tacit agreement in maritime boundary delimitation'
- 'Transboundary resources'
- 'Activities in undelimited marine areas'

Delivered at the Ocean Governance Joint Interdisciplinary Conference, University of Ghana, Legon- September 4, 2004. Organised by the University of Ghana School of Law.

- 'Post Judgment / Award Procedures in Maritime boundary Delimitation'

Lecturing during the Summer School on the Continental Shelf in Arusha Tanzania.

Statement of Dr. Dominic Akuritinga Ayine

Attorney-General and Minister for Justice of the Republic of Ghana

The Republic of Ghana, with its rich maritime history and vast offshore resources has always upheld international law as the basis for its international relations. As a state party to the United Nations Convention on the Law of the Sea (UNCLOS), Ghana has always endeavoured to settle her maritime boundary disputes with its neighbours in a spirit of cooperation in complete fidelity to international law. I am therefore pleased to announce the nomination of Dr. Sylvia Adusu for the 2026 elections to the International Tribunal on the Law of the Sea (ITLOS).

She is a lawyer of over thirty years standing with a remarkable career in government service and a reputation for fairness and integrity. She has over the years provided invaluable legal advise to government on a wide range of subjects notably those related to the law of the sea matters. As a member of the Ghana Boundary Commission, she has taken part in crucial negotiations between Ghana and neighbouring states on their maritime boundaries as well as promoted joint cooperation among the states in the region. These experiences will no doubt stand Dr. Adusu in good stead to serve on the Tribunal.

This is also the first time a Ghanaian woman has been nominated as a candidate for elections to the ITLOS and I am confident that her nomination will bring to the Tribunal an opportunity to provide a gender perspective in international dispute settlement and could also provide inspiration for UNCLOS tribunals. The Republic of Ghana takes this opportunity to affirm its unreserved support for the Tribunal by endorsing the candidature of Dr. Adusu for the 2026 election to the Tribunal.

Awarded : Companion of the Order of the Volta
For work on the Ghana Maritime Boundary Delimitation case
before the International Tribunal on the Law of the Sea (ITLOS).

“Dr. Sylvia Ama Adusu’s intergity, strategic insight and tireless commitment to fair, rules-based governance will be an asset to the International Tribunal for the Law of the Sea (ITLOS). I extend to her my full and unreserved support.”

His Exellency John Dramani Mahama
President of the Republic of Ghana